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| August 17, 2018 |          |            |   |   |   |
| FEDERAL         | MARITIME | COMMISSION |   |   |   |

**FEDERAL MARITIME COMMISSION**

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**DOCKET NO. 14-06**

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**SANTA FE DISCOUNT CRUISE PARKING, INC., d/b/a EZ CRUISE PARKING;  
LIGHTHOUSE PARKING INC.; and  
SYLVIA ROBLEDO d/b/a 81st DOLPHIN PARKING**

**v.**

**THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES; and  
THE GALVESTON PORT FACILITIES CORPORATION**

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**ORDER TO IDENTIFY NECESSARY SUPPLEMENTAL BRIEFING**

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On December 4, 2015, the undersigned entered an Initial Decision dismissing the Complaint in this proceeding. *Santa Fe Discount Cruise Parking, Inc. v. The Board of Trustees of the Galveston Wharves*, FMC No. 14-06 (ALJ Dec. 4, 2015) (Initial Decision) (*Santa Fe Initial Decision*). On January 13, 2017, the Commission entered an order affirming the dismissal of the Complaint. *Santa Fe Discount Cruise Parking, Inc. v. The Board of Trustees of the Galveston Wharves*, FMC No. 14-06 (FMC Jan. 13, 2017) (Order Affirming Initial Decision's Dismissal of Complaint) (*Santa Fe Commission Affirmance*).

On May 11, 2018, the United States Court of Appeals vacated the Commission's decision and remanded this case to the Commission for further proceeding consistent with the court's opinion. The court stated:

Petitioners were plainly injured when they were charged more than the other commercial passenger vehicles. To be sure, under the statute and the [*Ceres Marine Terminal, Inc. v. Maryland Port Administration*, 27 S.R.R. 1251, 1270 (FMC 1997)] test, the Galveston Port may be able to show that the differential treatment of Petitioners' shuttle buses is justified by legitimate transportation factors. But the Commission never reached that step of the analysis. On remand, the Commission may consider the Port's argument to that effect.

*Santa Fe Disc. Cruise Parking, Inc. v. Fed. Mar. Comm’n*, 889 F.3d 795, 797 (D.C. Cir. 2018).

On August 9, 2018, the Commission remanded the proceeding to the undersigned “to address all remaining issues, including whether the Port’s different treatment was justified by valid transportation factors, whether the Shipping Act’s statute of limitations bars any of Complainants’ claims, and whether Complainants are entitled to relief. Additional briefing by the parties may be permitted in the ALJ’s discretion.” *Santa Fe Discount Cruise Parking, Inc. v. The Board of Trustees of the Galveston Wharves*, FMC No. 14-06 (FMC Aug. 9, 2018) (Order Remanding Proceeding to Administrative Law Judge).

The undersigned is seeking the parties’ views on what, if any, issues remain, and what, if any, additional briefing is required before the undersigned addresses the remaining issues.

## **I. FINDINGS OF FACT.**

The Initial Decision sets forth eighty-three findings of fact. *Santa Fe Initial Decision* at 12-25. The parties had an opportunity to challenge these findings when the Commission reviewed the Initial Decision. The Commission’s order affirming the dismissal of the Complaint states that “Complainants, in their Exceptions, object to FF 80 that Note D did not provide a mechanism to determine ‘billable parking spaces’ for hotels. Complainants’ Exceptions at 3. Respondents disagree with FF 26 that hotels are off-port parking users. Respondents’ Reply at 8.” *Santa Fe Commission Affirmance* at 2 n.1. The Commission does not discuss these two findings or conclude that the two findings or any other findings of fact are unsupported.

Because the parties had an opportunity to challenge the findings of fact and the Commission did not find fault with the findings, the findings of fact in the Initial Decision are binding and may not be challenged on this remand.

## **II. CONCLUSION OF LAW IN THE INITIAL DECISION.**

The Initial Decision sets forth conclusions of law on several issues. *Santa Fe Initial Decision* at 26-53. The Commission ordered “that the Initial Decision is, except as to the ALJ’s determination with respect to the first *Ceres* element, affirmed.” *Santa Fe Commission Affirmance* at 29.

Therefore, it is hereby

**ORDERED** that on or before September 6, 2018, Complainants serve and file a statement setting forth what, if any, additional issues remain, and what, if any, supplemental briefing they believe is necessary before the undersigned addresses the remaining issues. The statement must identify the pages in Complainants’ *and* Respondents’ original briefing *and* any portion of the Initial Decision and/or Commission decision affirming the Initial Decision that addresses the issue to be addressed in the proposed supplemental briefing and state why the Commission’s decision, the Court of Appeals’ remand, or the Commission’s remand causes the need for supplemental briefing. The

supplemental briefing itself must not be submitted with Complainants' response. The information in the statement will inform the undersigned's decision on whether additional briefing is appropriate.

It is

**FURTHER ORDERED** that on or before September 20, 2018, Respondents file a response to Complainants' statement. Respondents must identify the pages in Complainants' *and* Respondents' original briefing *and* any portion of the Initial Decision and/or Commission decision affirming the Initial Decision that addresses the issue to be addressed in the proposed supplemental briefing, and if Respondents oppose additional briefing, state why additional briefing is not necessary.

  
Clay G. Guthridge  
Administrative Law Judge